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		emotional distress damages. But in <i>Young v. Bank of America</i>, (1983) 141 Cal.App.3d 108, 114, the court held that damages for pain, suffering, and emotional distress are general damages which need not be specifically pleaded in the prayer for relief. In other words, emotional distress allegations in the body of the complaint can support recovery even without a corresponding prayer. Plaintiff shall file an amended complaint, if any, within ten days of this order. The case management conference is continued to January 25, 2027 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
53.		
54.	Williams v. Allegis Group, Inc. 2023-01330124	Defendant The Procter & Gamble Company's Motion to Set Aside Default and Default Judgment is GRANTED. (Code Civ. Proc. §473, subd. (d).) Moving Defendant has shown that valid service of process was not achieved over it, so any ensuing default and/or default judgment is void. The default judgment entered on 11/12/25 is hereby VACATED. Moving Defendant's default entered on 6/6/24 is hereby SET ASIDE. The case management conference is scheduled for January 25, 2027 at 9:00 a.m. in Department C28. Defendant Procter & Gamble shall provide notice.
55.	Hussien v. Alonso 2025-01534468	Specially appearing defendants Hidalgo Daniel Alonso and Patricia Hidalgo's motion to quash service of summons is GRANTED. (Code Civ. Proc., § 418.10, subd. (a) [authorizing motion]; <i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1439 [proper service of summons is required for the court to obtain jurisdiction over a defendant]; <i>Mihlon v. Superior Court</i> (1985) 169 Cal.App.3d 703, 710 [plaintiff has burden of proof to demonstrate jurisdiction is proper].) Moving parties' evidence is sufficient to rebut any presumption of proper service established by the proofs of service of the summons and complaint filed by plaintiff in this action (ROA 10, 12). (Evid. Code, § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section

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		22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return”]; <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390 [“registered process server's declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration,” in which case “defendant [is] thus required to produce evidence that he was not served”].) Moving defendant Patricia Hidalgo avers: “I did not reside, abide, conduct business, or used as a mailing address 8209 Comolette Street, Downey, CA on March 5, 2026” [i.e. the date of sub service on the POS]. (P. Hidalgo Decl., ¶ 1.) Thus, this defendant has shown that the substitute service did not occur at her “dwelling house, usual place of abode, usual place of business, or usual mailing address,” as required for substitute service. (Code Civ. Proc., § 415.20, subd. (b).) Both defendants also present evidence that “Fredy Hidalgo,” the person purportedly served as substitute service, does not reside at the address of service, and was not present at the time of purported service. (P. Hidalgo Decl., ¶ 2 and 3; D. Hidalgo Decl., [second] ¶ 1, ¶ 2; F. Hidalgo Decl.) Thus, both defendants have shown that service was not made “in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address,” as also required for substitute service. (Code Civ. Proc., § 415.20, subd. (b).) Plaintiff has not provided any evidence showing that substitute service was properly effected on either party, as is his burden. (<i>Mihlon v. Superior Court</i>, <i>supra</i> at 710.) Accordingly, the motion is GRANTED as to both defendants. The Opposition requests leave to re-serve plaintiffs, which leave is unnecessary on these facts. (<i>GMS Properties, Inc. v. Superior Court</i> (1963) 219 Cal.App.2d 407, 410 [“there is nothing in the law which forbids a second and successful attempt to serve a party in a pending law suit, after the elimination of the factor which justified the original ruling ... the effect of granting a motion to quash service is to declare the service void and not to dismiss the complaint;” internal citation and quotation marks omitted].) In addition to the foregoing, in reviewing the Opposition brief, it appears that plaintiff’s counsel has used a generative artificial intelligence (AI) tool without verifying the authorities or citations provided, or otherwise cited authorities to the

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		court without confirming their accuracy. AI “hallucinations” are either legal authorities that are entirely made up by an AI tool, or citations to real cases that do not include the quote or stand for the proposition for which AI cites them. (See <i>Noland v. Land of the Free, L.P.</i> (2025) 114 Cal.App.5th 426 [“<i>Noland</i>”].) <i>Noland</i> makes clear attorneys have the duty to verify the accuracy of all representations and authorities they present to the court, regardless of whether generated by AI or some other source. (<i>Id.</i> at 445-446.) Here, for example, the Opposition cites <i>Trackman v. Kenney</i> (2010) 187 Cal.App.4th 175, 183 [<i>Trackman</i>], for the proposition that “[t]he Court of Appeal has specifically cautioned that courts should not routinely quash service based solely on the interested parties’ denials,” and attributes the following quote to <i>Trackman</i>: “If we were to hold otherwise, a defendant could defeat substituted service in virtually every case simply by filing a declaration denying residence at the address served.” (Opposition at 4:19-26.) The court is unable to find that quote at either the cited page reference or anywhere else in the opinion. Moreover, moving party in <i>Trackman</i> did not argue that service was defective because he did not reside at the address of service; rather, moving defendant there conceded his tenant had advised that “legal papers had been served” at that address (<i>Id.</i> at 179), but argued that identifying the tenant as “John Doe” was insufficient, which argument was rejected by the <i>Trackman</i> Court (<i>Id.</i> at 184–185). The Opposition also cites <i>Khourie, Crew & Jaeger v. Sabek, Inc.</i> (1990) 220 Cal.App.3d 1009 [<i>Khourie</i>], for the proposition that a party’s claim of non-receipt of mailed process is insufficient to rebut a presumption of mailing. (Opposition at 4:9-15.) However, moving defendant in <i>Khourie</i> challenged the physical service itself, but did not argue that the subsequent mailing was deficient, or that the subsequent mailing was never received. The Opposition also cites <i>Pasadena Medi-Center Associates v. Superior Court</i> (1973) 9 Cal.3d 773, for the proposition that the “court has discretion to allow re-service rather than dismiss.” (Opposition at 5:27-28.) However, that case did not hold that the trial court has discretion to allow re-service where a motion to quash is granted; indeed, the motion to quash was denied. Based on the foregoing, plaintiff’s counsel should appear at the hearing prepared to address whether the court should issue an order to show cause why counsel should not be

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		sanctioned or reported to the State Bar for presenting AI hallucinations or otherwise failing to confirm the representations counsel makes to the court. If the court decides to issue an order to show cause, a separate hearing will be set. The case management conference is continued to January 25, 2027 at 9:00 a.m. in Department C28. Moving parties shall give notice of this ruling.
56.	Natfund II LLC v. Aryabhata Group LLC 2025-01521675	Third Party Intervenor Pacific High Yield Fund I, LLC's unopposed Motion for Leave to Intervene is GRANTED. "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice." (Code Civ. Proc., § 405.30.) "A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Proc. § 387(c).) Intervenor is the current owner of the Property at issue and disputes the validity of the lis pendens. As such, Intervenor has a sufficient interest in the litigation to allow intervention. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has such an interest, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003.) The motion is unopposed. Although Intervenor has not attached a copy of the proposed answer, the court GRANTS the motion and ORDERS Intervenor to separately file the answer in intervention within ten days. Intervenor shall give notice in accordance with Code Civ. Proc. § 387, subd. (e).